THE CORPORATION OF THE TOWNSHIP OF NIPISSING

BY-LAW NUMBER 2026-04

Being a by-law to Amend Consolidated By-Law Number 2021-50, to regulate the parking of vehicles within the Corporation of the Township of Nipissing.

WHEREAS the Township of Nipissing Council passed By-Law Number 2021-50, the Parking By-Law, to establish rules to regulate the parking of vehicles;

AND WHEREAS the Township of Nipissing Council passed By-Law 2024-11, Amendment to the Parking By-Law 2021-50, to provide additional property boundaries and parking restrictions;

AND WHEREAS changes to parking restrictions including declaration of a turn-around, time frames for parking in the municipal parking lot and acceptable uses of the municipal parking lot are required;

AND WHEREAS Section 11(3) of the *Municipal Act*, S.O. 2001 c. 25, as amended, provides that municipalities may pass By-Laws regulating parking, except on highways;

NOW THEREFORE the Council of the Corporation of the Township of Nipissing amends Consolidated By-Law Number 2021-50 for the following:

Inclusion of "**AND WHEREAS** Section 11(3) of the *Municipal Act*, S.O. 2001 c. 25, as amended, provides that municipalities may pass By-Laws regulating parking, except on highways;:

1.a) Insert: "Accessory Structure" means a use, building or structure that is naturally or normally incidental, subordinate and exclusively devoted to the principal use, building or structure and located on the same lot therewith. Accessory may include the temporary storage of a travel trailer, ice bungalow or ice hut, provided the same is not used for sleeping or cooking during such period of temporary storage.

1.i) Insert: "Ice Hut" means a building that is designed to be transported onto the ice of a lake for shelter during fishing during winter months. When on land, an ice hut shall be considered an accessory structure.

1.j) Insert: "Ice Bungalow" means an accommodation unit designed to be mobile and transported onto the ice of a lake for temporary accommodation purposes during winter months. When on land, an ice bungalow shall be considered an accessory structure.

1.q) Insert: "Parking Lot" means a lot on municipally owned property for temporary vehicle parking that is regulated by the municipality.

1.y) Insert: "Trailer" means a trailer, travel or tent, any trailer which is designed to be temporarily utilized for living, shelter and sleeping accommodation, with or without cooking facilities and which has running gear and towing equipment that is permanently attached and is not permanently affixed to the ground. Can also mean a vehicle that is at any time drawn upon a highway by a motor vehicle.

2.5 Insert: "or as specified by this By-Law and appropriate signage at the location." After "Day Parking provides space for parking for not longer than twelve (12) hours".

2.5 Day Parking areas Provided at:
Remove: "Sandy Bay Road, at the end of the road, located off of turnaround".

2.5 Overnight Parking areas provided at:
Remove: "Birchgrove Road (amended by By-Law 2024-11) at lot provided, corner of Rocky Shore Drive.

Include:
"2.7 Municipal Parking Lot – 1060 Birchgrove Road

Parking lot will be open for public use during the Winter season and Summer season. Barriers will be in place during the wet seasons of Spring and Fall to protect the asset from damage.

Opening of the lot will coincide with the Ice Fishing Season of January 1 to March 15 each year. The Municipality will open the lot at their discretion earlier than January 1 should weather and ground conditions be appropriate.

Parking in the lot during the Winter season is restricted to day time use, 6:00 a.m. to 8:00 p.m.

Trailers (all trailers for all purposes), snow vehicles, ice huts, ice bungalows, any accessory structures, and all vehicles must be out of the parking lot by 8:00 p.m. during the Winter season of January 1 to March 15. Vehicles remaining may be ticketed or towed, at the expense of the owner.

Overnight use of the parking lot for storage of equipment, vehicles, trailers (all kinds), ice huts, ice bungalows, or any accessory structure for human habitation is not permitted."

Schedule A, 4. Remove: "designated parking area with limited spaces for Day Time Parking; and no parking on roadway. (Reference Illustration 2, attached)."

Schedule B, Include: "As marked on the map below and including the end of Sandy Bay Road."

Illustration 2, update to restrict parking for a Winter Maintenance Turnaround, removing day parking during Winter Season.

Effective Date:
That this By-law shall come into force and effect immediately on the passing thereof.

READ A FIRST, SECOND AND THIRD TIME AND PASSED THIS 3RD DAY OF JANUARY, 2026.

THE CORPORATION OF THE
TOWNSHIP OF NIPISSING

_____
Dave Yemm, Mayor

_____
Kris Croskery-Hodgins,
Municipal Administrator-Clerk-Treasurer